

ELIZABETH II



1972 CHAPTER xxx

An Act to confer further powers on the Devon County Council and on local and highway authorities in the administrative county of Devon in relation to lands, amenities, highways and public order and the local government, improvement, health and finances of the county; and for other purposes. [27th July 1972]

WHEREAS it is expedient that further and better provision should be made with reference to lands, amenities, highways and public order and for the local government, improvement, health and finances of the administrative county of Devon (hereinafter in this Act referred to as "the county") and that the powers of the county council of the county (hereinafter in this Act referred to as "the Council") and of the local and highway authorities within the county should be enlarged and extended as by this Act provided:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been complied with by the Council:

1933 c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows (that is to say):—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the Devon County Council Act 1972.
- Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Land and amenities.
 Part III.—Highways and streets.
 Part IV.—Public health, public order and public safety.
 Part V.—Finance.
 Part VI.—Miscellaneous.
 Part VII.—General.
- Interpretation. 3.—(1) In this Act the several words and expressions (other than those defined in subsection (2) of this section) to which meanings are assigned by section 343 of the Act of 1936 and sections 294 and 295 of the Act of 1959 have the same respective meanings unless there be something in the subject or context repugnant to such construction.
- (2) In this Act, unless otherwise expressly provided or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—
- 1933 c. 51. “ the Act of 1933 ” means the Local Government Act, 1933;
 1936 c. 49. “ the Act of 1936 ” means the Public Health Act, 1936;
 1959 c. 25. “ the Act of 1959 ” means the Highways Act, 1959;
 “ the Act of 1961 ” means the Devon County Council Act, 1961;
 1961 c. xlv. “ the Act of 1965 ” means the Devon County Council Act, 1965;
 1965 c. xxix. “ the Act of 1971 ” means the Town and Country Planning Act, 1971;
 1971 c. 38. “ appointed day ” has the meaning assigned to that expression by section 4 (The appointed day) of this Act;
 “ the corporation ” means the mayor, aldermen and citizens of the city of Exeter;
 “ the Council ” means the county council of the county;

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—cont.

- “the county” means the administrative county of Devon;
- “daily fine” means a fine for each day or part of a day on which an offence is continued after conviction thereof;
- “district” means a borough or an urban or rural district in the county;
- “enactment” includes an enactment in this Act or in any public general or local Act and any order, byelaw, scheme or regulation for the time being in force within the county;
- “harbour authority” has the same meaning as in section 57 of the Harbours Act, 1964 and includes a navigation authority and conservancy authority within the meanings respectively assigned thereto in section 135 of the Water Resources Act, 1963; 1964 c. 40. 1963 c. 38.
- “highway authority” means—
- (a) in the case of a trunk road, the Secretary of State, or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that trunk road;
 - (b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council; and
 - (c) in the case of any other highway, the local authority for the district in which the highway is situate;
- “land” includes land covered by water and any interest in land or any easement or right in, to or over land;
- “local authority” means the council of a district;
- “magistrates’ court” has the same meaning as in the Magistrates’ Courts Act, 1952; 1952 c. 55.
- “the maritime districts” means—
- the borough of Dartmouth;
 - the urban district of Budleigh Salterton;
 - the urban district of Dawlish;
 - the urban district of Exmouth;
 - the urban district of Ilfracombe;
 - the urban district of Kingsbridge;
 - the urban district of Lynton;
 - the urban district of Northam;
 - the urban district of Salcombe;
 - the urban district of Seaton;
 - the urban district of Sidmouth;
 - the urban district of Teignmouth;

PART I
—cont.

the rural district of Axminster;
 the rural district of Barnstaple;
 the rural district of Bideford;
 the rural district of Honiton;
 the rural district of Kingsbridge;
 the rural district of Plympton Saint Mary;
 the rural district of Saint Thomas;
 the rural district of Totnes;

and “ maritime district ” shall be construed accordingly;

“ officer ” includes servant;

“ parish council ” means the parish council of a rural parish in the county or, where there is no parish council, the parish meeting of such parish;

“ the police authority ” means the Devon and Cornwall Police Authority;

“ statutory undertakers ” means any company, body or person authorised by any enactment to supply electricity, gas or water, and includes the Post Office;

“ verge ” includes any lands situated between two carriageways and any part of a street which is not a carriageway, footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

The
appointed
day.

4.—(1) In this Act “ the appointed day ” means such day as may be fixed by resolution of a local authority subject to, and in accordance with, the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local newspaper circulating in their district notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

- (b) a photostat or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

PART I
—cont.

shall be evidence of the publication of the notice and of the date of publication.

PART II

LANDS AND AMENITIES

5.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:—

Agreements
with
developers.

- (a) determining the manner in which that land is to be developed and the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land, or over a part or parts of any building or structure which is comprised in the development, and the maintenance and cleansing of the public rights of way so dedicated, including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for, or in connection with, development of that land or relating to the provision or maintenance of roads required for the purposes of that development;
- (f) any other related or consequential matters.

(2) (a) An agreement entered into under the foregoing subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may

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—cont.
1925 c. 22.

not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered as a local land charge for the purposes of the Land Charges Act, 1925, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the foregoing subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement, the Council may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Council shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement, an agreement entered into under the foregoing subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

(4) In this section "development" has the same meaning as in section 22 of the Act of 1971.

(5) Section 291 of the Act of 1936 shall have effect as if reference therein to that Act included a reference to this section.

Amendment of
section 11 of
Act of 1961.

6. Section 11 (Loans for erection etc., of buildings) of the Act of 1961 shall have effect as if—

- (1) in subsection (1) for the words "acquired from or leased by the Council" there were substituted the words "in the county"; and
- (2) in the proviso to that subsection for the words "three-quarters" there were substituted the words "nine-tenths".

Undertakings
and agree-
ments binding
successive
owners.

7.—(1) Every undertaking given to the Council by the owner of a legal estate in land, and every agreement made between the Council and any such owner, being an undertaking or agreement—

- (a) given or made under seal either on the passing of plans or otherwise in connection with the land; and
- (b) expressed to be given or made in pursuance of this section;

shall, if registered in the local land charges register, be enforceable by the Council against the person who entered into or joined as a party to such undertaking or agreement and all persons deriving title by, through or under him.

(2) Any person against whom such an undertaking or agreement is enforceable shall be entitled to require from the Council a copy thereof.

PART II
—cont.

8. In subsection (1) of section 13 (Compulsory acquisition of easements) of the Act of 1961 for the words “ buildings owned or occupied by the Council at the passing of this Act ” there shall be substituted the words “ land or building owned or occupied, or intended to be acquired or occupied ” and at the end of that subsection there shall be added the words “ Provided that the Council may not exercise the powers of this section in circumstances where they may be authorised to acquire such rights by virtue of section 47 of the Highways Act, 1971 ”.

Amendment of section 13 of Act of 1961.
1971 c. 41.

9.—(1) Subject to the provisions of this section the highway authority shall have power in any street vested in them or on any land acquired by them for the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

Protection of trees, grass verges and gardens.

- (a) to plant trees or shrubs or other plants or place containers in which to grow trees or shrubs or other plants;
- (b) to attach containers for plants to posts or standards provided by the highway authority or, with the consent of the owner thereof, to any other posts or standards;
- (c) to lay out any grass verge, garden or space;
- (d) to provide guards or fences, and otherwise do anything expedient for the maintenance or protection of any such tree, shrub or plant, container, grass verge, garden or space;
- (e) to cut down any such tree, shrub or plant, to remove any such container, guard or fence and to alter the nature of any such grass verge, garden or space or enlarge or diminish the area thereof;
- (f) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle, vehicles or caravans to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any garden or space so laid out;
- (g) by notice to prohibit the playing of any game on any such grass verge, garden or space as aforesaid which is likely to cause damage thereto.

(2) Any such notice as is referred to in paragraph (f) or paragraph (g) of subsection (1) of this section shall be indicated by such traffic signs as may be approved for the purpose pursuant

PART II
—cont.
1967 c. 76.

to sections 54 and 55 of the Road Traffic Regulation Act, 1967, conspicuously posted on, or in proximity to, the grass verge, garden or space to which it relates.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(4) Any person (except in a case of emergency) who contravenes a notice so posted in pursuance of the said paragraph (f) or any person who contravenes a notice so posted in pursuance of the said paragraph (g) shall be liable to a fine not exceeding twenty pounds and the court may order the payment of such further amount as appears reasonable compensation for any damage caused by such contravention to such grass verge, garden or space, which last-mentioned amount shall be paid to the highway authority.

1925 c. 68.

(5) (a) Section 82 of the Act of 1959 shall cease to have effect so far as it confers powers on a highway authority in relation to any highway for which that authority is the highway authority, or any such land as is referred to in subsection (1) of this section; and anything done by such a highway authority under that section or under section 1 of the Roads Improvement Act, 1925, with respect to such a highway or land before the passing of this Act shall be deemed to have been done under this section.

(b) Subsections (3) and (4) of the said section 82 shall have effect as if for any reference to the powers conferred by subsection (1) of that section there were substituted reference to the powers conferred by subsection (1) of this section.

(6) Nothing in this section shall affect the duty of the highway authority to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(7) (a) Where the highway authority carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

(8) Section 251 of the Act of 1959 shall apply to the exercise of the powers of this section.

10.—(1) A local authority may within or outside their district provide a golf course, and for that purpose may provide such buildings, and execute such works, as may be necessary or expedient. PART II
—cont.
Golf courses.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under the last foregoing subsection, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The local authority may either—

- (a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or
- (b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

(4) The local authority may—

- (a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant, upon such terms and conditions, and for such period, as they think fit, the right so to provide and sell refreshments;
- (d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor at any such golf course.

(5) The local authority may make byelaws for regulating the use of golf courses provided under this section, whether within or without their district, and the conduct of persons using them or resorting thereto.

(6) No power conferred upon a local authority by this section shall be exercised in such a manner—

- (a) as to be at variance with an express trust subject to which land or a building is held, managed or controlled by the local authority, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State for Education and Science, or (where

PART II
—cont.

the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or

- (b) as to contravene a covenant or condition subject to which a gift or lease of any land or a building has been accepted by, or granted to, the local authority, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

(7) As respects byelaws made under this section the confirming authority, for the purposes of section 250 of the Act of 1933, shall be the Secretary of State.

(8) In this section “ golf course ” includes a driving range.

(9) The powers of a local authority under subsections (2) to (8) of this section shall apply with respect to any golf course provided by them under any other enactment as those powers apply with respect to any golf course provided under subsection (1) of this section.

Removal and disposal of vessels, etc., in tidal rivers and estuaries.

11.—(1) In this section “ tidal lands ” means lands below the level of mean high-water springs and forming part or parts of the bed and foreshore of any river or river estuary in the county.

(2) Where it appears to the local authority that any vessel or thing is abandoned without lawful authority on tidal lands within or adjoining their district and that the amenities of those lands are thereby prejudiced, the local authority may if they think fit, subject to subsection (3) of this section, remove the vessel or thing and dispose of any such vessel and, subject to the following provisions of this section, may recover as a simple contract debt from the person by whom the vessel or thing was abandoned any expenses reasonably incurred by them in such removal and disposal which are not reimbursed out of any proceeds of sale. The local authority shall hold the surplus, if any, of the proceeds in trust for the persons entitled thereto.

(3) Before exercising in relation to any vessel which does not appear to them to be derelict any of the powers conferred on them by subsection (2) of this section, the local authority shall (after consulting the river authority within or adjacent to whose area, and any harbour authority within whose limits of jurisdiction the tidal lands are situated) give to the person by whom the vessel or thing was abandoned not less than fourteen days’ notice of their intention to do so; and if before the notice expires the local authority receive from that person counter-notice in writing that he desires to dispose of the vessel himself, he shall be at liberty to do so, and the local authority shall not exercise the

powers aforesaid in relation to that vessel until the expiration of seven days from the receipt of the counter-notice and of any further continuous period thereafter during which that person proceeds with the disposal thereof with all reasonable diligence.

PART II
—cont.

(4) Notice under the last foregoing subsection to the person by whom the vessel or thing was abandoned may be served by the local authority either by delivering it to him or by sending it to him by registered post or the recorded delivery service addressed to him at his last known place of business or abode in the United Kingdom, or, if that person or any such place of business or abode is not known to the local authority, by publication in a newspaper circulating in the locality and displaying a copy of such notice at their offices for the period of its duration.

(5) Subsections (1) and (2) of section 19 of the Civic Amenities Act, 1967, shall apply to any vessel or thing abandoned on the tidal lands as they apply to any motor vehicle or thing abandoned on lands to which that section applies; and the court by which a person is convicted of an offence under subsection (1) of the said section 19 as so applied may, on the application of the local authority and in addition to any other order made by the court in relation to that person, order him to pay to the local authority any sum which, in the opinion of the court, the local authority are entitled to recover from him under this section in respect of that vessel or thing: 1967 c. 69.

Provided that nothing in this subsection shall apply to any vessel abandoned as a consequence of shipwreck.

(6) Before exercising the powers of this section in relation to any vessel or thing abandoned on tidal lands of the river Exe appearing to be owned by the lord of the manors of Kenton and Powderham the local authority shall consult the lord of those manors.

(7) Nothing in this section shall affect the rights, powers, authorities and privileges of the corporation as a navigation authority.

PART III

HIGHWAYS AND STREETS

12. Section 17 (Verges, etc., of housing estates) of the Act of 1961 is hereby amended as follows:—

Amendment of
section 17 of
Act of 1961.

(a) in subsection (1) for the words “Where in pursuance of the Housing Act, 1957, any grass verge, garden or space is provided by a local authority” there shall be substituted the words “Where any grass verge, garden or space is provided by a local authority in pursuance 1957 c. 56.

PART III

—cont.

1957 c. 56.

of the Housing Act, 1957, or some other enactment, or by any other person in pursuance of arrangements made with the local authority ”;

(b) in subsection (2) for the words “ shall be liable to a fine not exceeding forty shillings ” there shall be substituted the words “ (except in case of emergency) shall be liable to a fine not exceeding twenty pounds ”;

(c) after subsection (3) there shall be inserted the following subsection:—

“ (4) Nothing in this section shall affect the rights of the Post Office with respect to apparatus (including the placing of apparatus) in any grass verge, garden or space:

Provided that in exercising such rights the Post Office shall not cause or permit, except in the case of necessity, vehicles to enter upon any such verge which is maintained in an ornamental condition or mown or any garden or space.”

Temporary
stoppage of
footpaths and
bridleways.

13. For the purpose of the execution of any works on or near a public footpath or bridleway in the county, the highway authority may restrict or prohibit temporarily the use of that footpath or bridleway, or of any part thereof:

Provided that—

(1) the highway authority shall not exercise the powers of this section so as to deprive persons with or without animals bona fide going to or from any building or land of reasonable access to the building or land;

(2) the exercise by the highway authority of the powers of this section in relation to any footpath or bridleway in the county shall not prevent statutory undertakers from obtaining access to any apparatus nor prejudice or affect the right of the Post Office or any statutory undertakers—

(a) to lay, erect, maintain, inspect, repair, renew or remove any apparatus in the footpath or bridleway or part thereof as the case may be; or

(b) for the purpose of such laying, erection, maintenance, inspection, repair, renewal or removal, to enter upon or break open that footpath or bridleway or part thereof as the case may be.

In this section words and expressions to which meanings are assigned by paragraph (1) of section 46 (For protection of certain statutory undertakers) of this Act shall have the same respective meanings.

PART III
—cont.Amendment of
section 26 of
Act of 1965.Awnings over
footways.

14. Section 26 (Sale of food and articles on verges, etc.) of the Act of 1965 shall have effect as if in subsection (1) the word “habitually” were omitted.

15.—(1) If a person erects, or permits to be erected, over the footway of a street in a district, being a highway maintainable at the public expense, an awning which—

(a) projects over any part of the footway which is less than 2 feet from the carriageway; or

(b) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding twenty pounds.

An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the local authority may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) In this section—

“awning” includes a blind, shade or other covering; and

“traffic sign” has the meaning assigned to it by section 54 of the Road Traffic Regulation Act, 1967.

1967 c. 76.

PART IV

PUBLIC HEALTH, PUBLIC ORDER AND PUBLIC SAFETY

16.—(1) Where a local authority have under section 16 of the Act of 1957 accepted an undertaking that a house will not be used for human habitation, or where the local authority have—

Securing of
unoccupied
houses under
Housing
Act, 1957.

(a) by a closing order made under sections 17, 18, 26 or 35 of the Act of 1957, ordered any house or building or any part thereof to be closed; or

1957 c. 56.

(b) by a clearance order under section 44 of the Act of 1957, ordered any building or any part thereof to be vacated and, in such a case, it appears to the local authority that the building or the part thereof (as the case may be) will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

PART IV
—*cont.*

they may, if the premises are not effectively secured so as to prevent the entry into the premises when unoccupied of any person other than a person authorised by the owner or the local authority, after 'giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building or part thereof as will so secure the premises against entry.

(2) Nothing in this section shall prejudice the powers of a local authority to take steps to deal with any dangerous, ruinous or dilapidated house or building under any enactment.

(3) In this section—

1957 c. 56.

“ Act of 1957 ” means the Housing Act, 1957;

“ house ” has the same meaning as in the Act of 1957;

“ owner ” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

Byelaws as to
boats and
trailers on
seashore.

1961 c. 64.

17.—(1) Section 76 of the Public Health Act, 1961, shall have effect in its application to the maritime districts as if in subsection (1) after paragraph (c) there were added the following paragraph:—

“(d) prohibiting or regulating the placing of pleasure boats and boat trailers on the seashore, or on such part or parts thereof as may be prescribed by such byelaws”.

(2) Before a local authority make byelaws under the said section 76 pursuant to the powers of this section they shall consult—

(a) the corporation, as respects any such byelaws as relate to any part of the estuary of the river Exe;

(b) any organisations appearing to the local authority to represent persons—

(i) who use the area to which the byelaws relate for any recreational activities likely to be affected by any of the provisions of the byelaws;

(ii) being the owners of any part of the seashore to which the byelaws relate.

Regulation of
bathing and
surfing.

18.—(1) Section 231 of the Act of 1936 shall have effect, in its application to the maritime districts, as if in subsection (1) after paragraph (f) there were added the following paragraph:—

“(g) prohibit bathing or attempting to bathe in such areas and during such periods as the local authority shall cause to be displayed in a conspicuous manner on the seashore, promenade, parade or other like place by means of flags or other means, notices that bathing in the sea or attempting to bathe therein is prohibited on account of danger;”;

and, in its application to the specified districts, as if after the said paragraph (g) there were added the following further paragraph:—

PART IV
—cont.

“(h) regulate for preventing danger to bathers the areas in which and the hours during which surfing by means of surf boards measuring more than 4 feet in length and incorporating a directional fin shall be permitted”.

(2) In this section—

“the specified districts ” means—

- the urban district of Exmouth;
- the urban district of Northam;
- the urban district of Salcombe;
- the urban district of Sidmouth;
- the urban district of Teignmouth;
- the rural district of Barnstaple;
- the rural district of Bideford;
- the rural district of Kingsbridge.

19.—(1) Subject to the following provisions of this section, as from the appointed day the local authority of a district to which this section applies shall operate the scheme for the control of surf riding set out in Schedule 1 to this Act. Control of surf riding.

(2) The Secretary of State may, on the application of the local authority of a district to which this section applies or of any person appearing to the Secretary of State to have an interest in the said scheme, by order make such amendments to the scheme as he thinks fit so far as it relates to that district.

(3) Any person guilty of an offence under the said scheme shall be liable to a fine not exceeding twenty pounds.

(4) This section shall apply to the following districts:—

- the urban district of Dawlish;
- the urban district of Exmouth;
- the urban district of Northam;
- the urban district of Salcombe;
- the urban district of Sidmouth;
- the urban district of Teignmouth;
- the rural district of Barnstaple;
- the rural district of Bideford;
- the rural district of Kingsbridge.

20.—(1) An authority may appoint officers to act as lifeguards for the rescue of persons in danger of drowning and provide shelter accommodation for such officers. Rescue apparatus and officers.

(2) The powers of section 234 of the Act of 1936 may be exercised by the Council or a parish council as those powers are exercisable by a local authority.

PART IV
—cont.

(3) An authority may contribute to the expenses incurred by any other body or person in providing in their area (whether or not in conjunction with any other area) any such life-saving appliances as may be provided pursuant to the said section 234 or such lifeguards and accommodation.

(4) An authority may combine with, or contribute to the expenses of, any other authority in exercising their powers under this section.

(5) In this section “authority” means the Council, a local authority or a parish council and “area” means in relation to the Council, the county, in relation to a local authority, their district, and in relation to a parish council, their parish.

**Byelaws for
controlling
rivers Taw and
Torridge.**

21.—(1) The appropriate local authority may make byelaws for the purpose of restricting the speed of vessels or of prohibiting or controlling water ski-ing or any similar activity on so much of the river Taw and the river Torridge (together with their common estuary) to which this section applies as is within or adjoining that authority’s district.

(2) Without prejudice to the generality of the foregoing provisions of this section, byelaws under this section may—

- (a) prescribe rules of navigation and impose speed limits;
- (b) make different provision for different circumstances and in particular may impose different restrictions in different parts of the river Taw or, as the case may be, the river Torridge and their common estuary to which this section applies, and at different times or seasons.

(3) In making any byelaws under this section the appropriate local authority shall have regard to safeguarding recreational activities, including bathing, shooting, fishing, sailing, water ski-ing and power boating within those parts of the river Taw and the river Torridge (with their common estuary) to which this section applies, so far as such activities are consistent with the interests of navigation and the safety of persons using the river Taw and the river Torridge and their common estuary.

(4) Before making any byelaws under this section the appropriate local authority shall consult with the Council, the Devon River Authority, the Corporation of Trinity House of Deptford Strond and with such organisations appearing to the appropriate local authority to represent persons who use the waters to which the byelaws are intended to apply for any recreational activities likely to be affected by any of the provisions of the byelaws.

(5) This section applies to that part of—

- (a) the river Taw downstream and west of a straight line drawn in a northerly direction from Penhill Point on the south bank to a point on the north bank of that river;

PART IV
—cont.

- (b) the river Torridge downstream of a straight line drawn in an easterly direction from a point on the western bank 1,417 yards or thereabouts measured in a northerly direction from the north-west corner of Bideford Bridge to a point on the eastern bank of that river;

and including so much of the common estuary of the river Taw and the river Torridge as lies in the county.

(6) In this section—

“appropriate local authority” means—

the urban district council of Northam; or
the rural district council of Barnstaple;

“vessel” means every description of vessel howsoever navigated, propelled or moved.

22. Section 31 (Fire precautions in certain large buildings) of the Act of 1961 shall be amended as follows:—

Amendment of
section 31 of
Act of 1961.

- (a) at the beginning of paragraph (ii) of subsection (1) there shall be inserted the words “if the local authority so require” and the words following the words “fire authority” to the end of that paragraph shall be omitted;

- (b) in proviso (a) to that subsection for the words “section 34 (Means of escape in case of fire) of the Factories Act, 1937” there shall be substituted the words “section 40 1937 c. 67. of the Factories Act, 1961” and at the end of that 1961 c. 34. proviso there shall be added the words “or to premises to which the Offices, Shops and Railway Premises Act, 1963, applies or to premises with respect to which 1963 c. 41. a fire certificate is for the time being in force under the Fire Precautions Act, 1971, or to premises to which 1971 c. 40. building regulations imposing requirements as to the provision of means of escape in case of fire apply”;

(c) in proviso (b) to that subsection—

(i) for the words “subsection (7) of section 36 (Safety provisions in case of fire) of the said Act of 1937” there shall be substituted the words “section 48 (7) of the said Act of 1961”;

(ii) after the word “applies” where it first appears there shall be inserted the words “or to premises to which section 34 of the said Act of 1963 applies”;

(iii) for the words “section 12 (Fire fighting) of the Factories Act, 1959” there shall be substituted the 1959 c. 67. words “section 51 of the said Act of 1961”; and

PART IV
—cont.

1971 c. 40.

(iv) at the end there shall be inserted the words
“ or to premises to which the said Act of 1963 applies
or with respect to which a fire certificate is for the
time being in force under the Fire Precautions Act,
1971. ”;

(d) for paragraphs (i) and (ii) of subsection (7) of that
section there shall be substituted the following para-
graphs:—

1968 c. 54.

“ (i) in respect of which a licence under the
Cinematograph Acts 1909 and 1952 or the Theatres
Act 1968 is for the time being in force; or

(ii) exempted from the provisions of Part II of the
Act of 1936 with respect to building regulations by
section 71 (c) of that Act; or

(iii) in Group V (Shop) in the table to regulation E2
of the Building Regulations, 1972, which is divided by
compartment walls or compartment floors, constructed
in accordance with those regulations in such a manner
that no division of the building is of a cubic extent
exceeding 7,000 cubic metres ”.

PART V

FINANCE

Power to
borrow.

23.—(1) The Council may borrow—

(a) such sums as may be necessary for any of the purposes
of this Act;

(b) without the consent of any sanctioning authority, such
sums as may be necessary for paying the costs, charges
and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act
of 1933 shall have effect as if money borrowed under this section
were borrowed under that Part.

(2) A local authority may borrow such sums as may be
necessary for any of the purposes of this Act.

(3) The Council shall repay sums borrowed under para-
graph (b) of the foregoing subsection within ten years from the
date of borrowing.

(4) It shall not be lawful to exercise the powers of borrowing
conferred by paragraph (a) of subsection (1) of this section
except in compliance with any order for the time being in force
under section 1 of the Borrowing (Control and Guarantees)
Act, 1946.

1946 c. 58.

Power to
raise money
by bills.

24. In addition to the modes of borrowing prescribed by
the Act of 1933, the Council may raise money—

(a) for any purpose for which the Council are authorised to
borrow;

- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

PART V
—cont.

by means of bills (to be called "Devon County Council bills", and in this section referred to collectively as "bills" and separately as a "bill") subject to, and in accordance with, the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (iv) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (v) The Council may make regulations providing for—
 - (A) the preparation, form, mode of issue, payment and cancellation of bills;
 - (B) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (D) the giving of a proper discharge on the payment of a bill:
- (vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed a sum being one-fifth of the aggregate for the then current financial year of the amount estimated to be produced by the levying of rates in the county to meet liabilities falling to be discharged by the Council:

PART V
—cont.

(viii) Subject to the provisions of the last preceding paragraph, the Council may renew a bill at maturity:

(ix) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

Power to
raise money
abroad.

25.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency, and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

(4) For the purposes of this section the Council may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise money by means of the issue of bearer bonds or other securities to bearer.

(5) It shall not be lawful to exercise the powers conferred by the foregoing provisions of this section except in compliance with the Exchange Control Act, 1947.

1947 c. 14.

Holiday
amenity fund.

26.—(1) The local authority of a maritime district may (if they think fit) establish a fund to be called "the holiday amenity fund" to which they may pay sums from the revenue of any trading undertaking of the local authority carried on for the purpose of providing holiday amenities (including the interest earned on the holiday amenity fund and any income arising from the application of that fund to the purposes authorised) as the local authority may by resolution direct, not being moneys directed by law to be applied to any other purpose:

Provided that—

(i) the aggregate amount paid to the holiday amenity fund under this subsection (in addition to the sum equal to the interest earned on the holiday amenity fund and any

income arising from the application of the fund to the purposes authorised) shall not, except with the consent of and to such extent as may be approved by the Secretary of State, exceed in any year the equivalent of the product of a rate of one new penny or one-half the surplus on the trading account in the same year, whichever is the less; and

- (ii) payments into the holiday amenity fund shall not be made whenever that fund amounts to five times the product of a rate of one new penny or such greater sum as may from time to time be approved by the Secretary of State.

(2) The local authority may apply the moneys in the holiday amenity fund in defraying any expenditure to which capital is properly applicable (being expenditure in connection with any trading undertaking of the local authority from which revenue is derived and which is carried on for the purpose of providing holiday amenities) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor):

Provided that the amount to be expended under this subsection shall not exceed a sum equal to five times the product of a rate of one new penny in any one transaction unless a greater sum shall in any case be allowed by the Secretary of State.

(3) Pending the application of moneys in the holiday amenity fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in accordance with the following provisions of this section.

(4) Sections 1, 2, 5, 6, 12 and 13 of the Trustee Investments 1961 c. 62. Act, 1961 (which relate to the investment powers of trustees), shall have effect in relation to any such moneys, and in relation to any investments or other property for the time being representing any such moneys, as if they constituted a trust fund and the local authority were the trustees of that trust fund; and subsection (2) of section 7 of that Act shall have effect in relation to sections 1, 2, 5 and 6 of that Act as applied by this subsection:

Provided that the moneys in the holiday amenity fund shall not by virtue of this section be invested, or held invested, in any manner specified in paragraph 6 of Part II of Schedule 1 to the said Act of 1961 or in wider-range investments.

(5) For the purposes of this section "the product of a rate of one new penny" means the product of a rate of one new penny as ascertained or estimated for the purpose of Part II of the General Rate Act, 1967.

PART V
—cont.

Sea defence
reserve fund.

1967 c. 9.

27.—(1) The local authority of a maritime district may establish a fund to be called “ the sea defence reserve fund ”, to which they may apply from the general rate fund any sum not exceeding in any financial year the equivalent of a rate of two new pence as ascertained or estimated for the purpose of Part II of the General Rate Act, 1967; and the maximum amount standing to the credit of such fund shall from time to time be determined by the local authority.

(2) (a) Pending the application of the moneys in the sea defence reserve fund to the purposes authorised by subsection (3) of this section, such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the sea defence reserve fund in the manner provided by the foregoing paragraph, and any income arising from the application of the fund to the purposes authorised, shall be carried to the general rate fund of the local authority and (subject to the limitations imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the sea defence reserve fund.

(3) The sea defence reserve fund shall be applicable to the construction of works as a defence against the sea and to making good any damage and to meeting any extraordinary claim or demand arising from accident to any of such works and so that, if at any time the fund be reduced, it may thereafter be again restored to the maximum sum determined by the local authority and so from time to time as often as such reduction happens.

(4) Resort may be had to the sea defence reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the local authority.

(5) In this section “ statutory securities ” means any securities in which trustees are for the time being authorised by law to invest trust funds.

Amendment of
power to issue
bonds, etc.
1963 c. 46.

28.—(1) For the purposes of section 7 (2) of, and paragraph 1 (c) of Schedule 1 to, the Local Government (Financial Provisions) Act, 1963—

(a) bonds issued by the Council under the said Act of 1963 to and held continuously by building societies and persons and bodies of such other classes as the Council may, with the consent of the Treasury, from time to time determine shall not be deemed to have been issued for a period of less than one year by reason only of the fact that the holder of such a bond has the right to claim premature repayment under a stress clause;

(b) a bond issued by the Council as aforesaid shall not be deemed to have been issued for a period of less than one year by reason only of the fact that it is issued on the condition that it may at the discretion of the Council be repaid upon the death of the holder or in any other case for the purpose of relieving hardship to the holder.

PART V
—cont.

(2) Section 43 (Power to issue bonds) of and Schedule 1 to the Act of 1961 are hereby repealed.

PART VI

MISCELLANEOUS

29.—(1) In its application to the Council of a maritime district, the Physical Training and Recreation Act, 1937, shall have effect as if in subsection (1) of section 4 of that Act there were added to the purposes, therein mentioned, of gymnasiums, playing fields, holiday camps or camping sites, the purpose of boating facilities; and as if to the purposes, also therein mentioned, of centres for the use of clubs, societies or organisations having athletic, social or educational objects there were added the purpose of centres for like bodies having boating objects. Boating facilities.
1937 c. 46.

(2) Subject to the provisions of this Act, and in particular section 43 (Crown rights) thereof, the council of a maritime district may, for the purpose of constructing and maintaining boating facilities pursuant to subsection (1) of this section and of affording channels and approaches thereto, deepen, dredge, scour, cleanse, alter and improve the seashore (as defined in section 49 of the Coast Protection Act, 1949, for the purposes of Parts II to IV of that Act) and may use, appropriate or dispose of the materials from time to time dredged by them: 1949 c. 74.

Provided that no materials so dredged by them shall be deposited below the level of mean high-water springs except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Secretary of State.

(3) The provisions of subsections (2) to (4) of section 7, section 8 (except subsection (4)) and subsections (1) to (3), (5) to (10), (12) and (13) of section 13 of the Countryside Act, 1968 (and section 46 of that Act, as incident to those provisions) shall, with all necessary modifications, apply so as to confer on the council of any maritime district as respects lands used or (as the case may be) required for or in connection with the provision of boating facilities pursuant to subsection (1) of this section the powers under those provisions of a local authority as respects a country park (and whether to such a park as comprising any waterway, or as bounded or not by the sea, or by any waterway which is not part of the sea) or, as the case may be, the powers thereunder of a local planning authority as respects any lake in a National Park: 1968 c. 41.

PART VI
—cont.

Provided that the powers for making byelaws under subsection (5) of the said section 8 and the said section 13, as conferred on the council of a maritime district pursuant to this section—

- (a) in the case of the said subsection (5), shall be exercisable without the prior consultation with the Countryside Commission required thereunder;
- (b) in the case of the said section 13, shall not be exercisable in relation to lands lying within a National Park otherwise than after consultation with the Council and the Countryside Commission.

(4) The powers of subsections (1) and (3) of this section for the construction of boating facilities and of buildings, accommodation, works and facilities connected therewith, shall be operative notwithstanding any interference with public rights of navigation or other public or customary rights (other than any right to use a highway) but neither these powers nor the powers of subsection (2) of this section shall extend without the consent of the harbour authority to lands for the time being falling within the limits of their jurisdiction or lands below the level of mean high-water springs and lying within 1,000 yards seawards from any part of those limits:

Provided that any consent required under this subsection shall not be unreasonably withheld and may be given subject to reasonable conditions, and any question whether such consent is unreasonably withheld or any conditions so imposed are reasonable shall be determined by the Secretary of State who may vary or revoke any condition subject to which a consent has been given or may impose such new conditions as he may think fit and may deal with the application for consent as if it were an application to him in the first instance.

1968 c. 41.

(5) Subsection (4) of section 8 and Schedule 1 to the Countryside Act, 1968, shall apply to the council of a maritime district before taking action under subsection (1), (2) or (3) of this section as they apply to a local authority before taking action under subsection (1), (2) or (3) of the said section and the said subsection (4) and schedule as so applied shall have effect as if in that subsection for the words following the word “question” where it first appears and before the word “and” where it lastly appears there were substituted the words “or to the adjoining land”.

Further
provision as
to boating
facilities.

30.—(1) The Secretary of State may, subject to the provisions of this section, on the application of a harbour authority or the council of a maritime district (hereafter in this section called “the

applicant”) by order repeal or amend any provision (hereafter in this section called “the relevant statutory provision”)—

PART VI
—cont.

- (a) in any local Act passed before this Act (other than an Act confirming a Provisional Order) the Bill for which was obtained by the harbour authority;
- (b) in any Act passed before this Act and confirming a Provisional Order made on the application of the harbour authority;
- (c) in any order or other instrument made on such application under an Act of Parliament before the passing of this Act.

(2) An order under this section shall not be made unless the Secretary of State is satisfied that the relevant statutory provision would be inconsistent with, would become unnecessary in consequence of, or that it is otherwise desirable that the provision should be so repealed or amended in the interests of securing the exercise by the council of a maritime district of, the powers of section 29 (Boating facilities) of this Act.

(3) The applicant shall submit to the Secretary of State a draft of the order which they desire him to make and shall publish once at least in each of two successive weeks in one or more local newspapers circulating in the area within which the limits of jurisdiction of the harbour authority are situate a notice—

- (a) stating the general effect of the order and containing a general description of the nature of the works for the provision of boating facilities to which the proposals of the order are related and the lands on which their execution is proposed;
- (b) specifying a place in the said area where a copy of the order and of any relevant map or plan may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice;
- (c) stating that, within the said period, any person may by notice to the Secretary of State object to the application;

and not later than the date on which the said notice is first published, the applicant shall serve a copy thereof and of the draft order on the Council and either on the council of the maritime district within which the boating facilities are to be provided or (if that council be the applicant) on the harbour authority to whom the relevant statutory provision relates.

(4) If, before the expiration of the twenty-eight days referred to in paragraph (b) of subsection (3) of this section, an objection is received by the Secretary of State from any person appearing to the Secretary of State to be affected by the application, and is not withdrawn, the Secretary of State, before making any order on the application, shall cause a local inquiry to be held.

PART VI
—cont.

(5) An order made under this section—

- (a) may contain such transitional, supplemental or incidental provisions as appear to the Secretary of State to be expedient; and
- (b) shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation
of last two
foregoing
sections
of Act.

31. In section 29 (Boating facilities) and section 30 (Further provision as to boating facilities) of this Act—

“boating facilities” includes yacht basins, marinas, breakwaters, embankments, quays, wharves, landing places, groynes, sea defences, slipways, jetties, moorings, buoys, navigation marks, starting boxes and other works, machinery, apparatus or conveniences, whether constructed on lands below or above the level of mean high-water springs;

“maritime district” includes the rural district of Newton Abbot and the borough of Totnes.

Information
centres.
1948 c. 26.

32. The powers of the Council under section 134 of the Local Government Act, 1948, to make or assist in making arrangements for the giving of information to the public in certain matters shall extend to any information concerning the county and its neighbourhood.

Power for
parish councils
to contribute
to preservation
of historic
buildings, etc.
1962 c. 36.

33. In their application to the county sections 1 and 2 of the Local Authorities (Historic Buildings) Act, 1962 (which empower local authorities to contribute to the preservation of historic buildings), shall have effect as if the expression “local authority” included a parish council and as if in addition to buildings to which those sections apply the powers thereof were applicable also to any building or site which in the opinion of the parish council ought to be repaired or maintained in the interests of amenity.

Teignmouth
Pier to be
within
county, etc.

34. So much of Teignmouth Pier as is not within the county shall for all purposes be deemed to be within the county, the urban district of Teignmouth and the petty sessional division of Teignbridge.

Numbers of
houses.
1847 c. 34.

35. As from the appointed day section 65 of the Towns Improvement Clauses Act, 1847, shall have effect in its application to a local authority as if after the words “with such numbers as the commissioners approve of” there were inserted the words “and in such positions as to be easily readable from the street”, and as if after the words “a number approved of by the commissioners” there were inserted the words “and in such position as to be easily readable from the street”.

36. The provisions of the enactments specified in column (1) of Schedule 2 to this Act shall have effect in the county as if the maximum fine which may be imposed on summary conviction of an offence specified in that enactment were a fine not exceeding the amount specified in columns (4) and (5) of that schedule instead of a fine of or not exceeding the amounts specified in columns (2) and (3) of that schedule.

PART VI
—cont.

Increase of
fines.

37.—(1) The provisions of this Act mentioned in subsection (2) of this section shall apply to a local authority and, for that purpose, shall have effect as if, for references therein to the Council and the county, there were substituted references to the local authority and to their district respectively, and subject to any other necessary modifications.

Application
to local
authorities of
provisions
of Act.

(2) The provisions hereinbefore referred to are—

Section 5 (Agreements with developers);

Section 7 (Undertakings and agreements binding successive owners);

Section 32 (Information centres).

PART VII

GENERAL

38. Section 265 of the Public Health Act, 1875, shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if references in that section to a member of a local authority included reference to a member of a committee or a sub-committee of the Council or of a local authority.

Protection of
members and
officers from
personal
liability.
1875 c. 55.

39. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Confirming
authority for
byelaws.

40.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purposes of any of his functions under this Act.

Local
inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose shall have effect as if the expression “department” in that section included any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

1946 c. 31.

PART VII
—cont.

Restriction
on right to
prosecute.

41. Proceedings in respect of an offence created by or under any provision of this Act, or under any byelaw made under any such provision, shall not, without the written consent of the Attorney-General, be taken by any person other than a party aggrieved or the Council, the highway authority, the local authority or a constable (as the case may be).

Appeals.

42.—(1) Section 300 of the Act of 1936 (which relates to appeals to magistrates' courts) shall apply to appeals to a magistrates' court under this Act (except under the provisions thereof mentioned in subsection (2) of section 47 (Application of general enactments) of this Act) and sections 301 and 302 of that Act (which make provision for appeals to the Crown Court and as to the effect of a decision of any court upon appeal) shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Council or a highway authority or local authority against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired, or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Council, highway authority or local authority themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Crown rights.

43. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing in this Act shall authorise the Council or any local authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management

of the Crown Estate Commissioners or belonging to a government department or held in trust for Her Majesty for the purposes of a government department, without the consent in writing of those commissioners on behalf of Her Majesty or, as the case may be, the consent in writing of that government department first had and obtained for that purpose.

PART VII
—cont.

44. In particular and without prejudice to the general law concerning the applicability of statutes to the Duchy of Cornwall nothing contained in this Act shall extend to authorise the Council or a local authority to take, enter upon or interfere with any land or water or take away or affect any rights, powers, privileges or authorities belonging to or enjoyed by Her Majesty in right of the Duchy of Cornwall or to or by the Duke of Cornwall for the time being without the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under section 39 (Proviso for exercise of powers when the Duchy of Cornwall is vested in the Crown) of the Duchy of Cornwall Management Act, 1863, to exercise all or any of the said rights, powers, privileges and authorities by the said Act made exercisable or otherwise for the time being exercisable in relation to the said duchy or as the case may be the consent of the said Duke testified in writing under the seal of the Duchy of Cornwall first had and obtained.

Saving rights
of Duchy of
Cornwall.

1863 c. 49.

45. For the protection of the Teignmouth Harbour Commissioners (in this section referred to as “the commissioners”) the following provisions shall apply and have effect:—

For protection
of Teignmouth
Harbour
Commis-
sioners.

(1) In this section, “the limits of the harbour” means the limits of the harbour of Teignmouth as for the time being existing:

(2) Nothing in subsection (2) of section 29 (Boating facilities) of this Act shall prejudice or affect the provisions of section 35 (Sand &c. not to be removed from or deposited in harbour without licence) of the Teignmouth Harbour Order, 1924:

(3) The council of a maritime district shall not under the powers of subsection (5) of section 8 of the Countryside Act, 1968, or section 13 of the said Act of 1968, as applied by subsection (3) of section 29 (Boating facilities) of this Act, make byelaws relating to any area within the limits of the harbour, without the consent of the commissioners which consent shall not be unreasonably withheld, and any question whether such consent is unreasonably withheld shall be determined by the Secretary of State.

1968 c. 41.

PART VII

—cont.

For protection
of certain
statutory
undertakers.

46. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the undertakers, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means—

(a) mains, pipes or other apparatus belonging to or maintained by the Gas Council or the South Western Gas Board;

1882 c. 56.

(b) electric lines or works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board or the South Western Electricity Board;

1878 c. 76.

(c) except in paragraph (5) (b) any telegraphic line (as defined in the Telegraph Act, 1878) belonging to or used by the Post Office;

and includes any works for the lodging therein of apparatus;

“ the appropriate authority ” means the local authority, the highway authority or the council of a maritime district, as the case may require;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ operational land ” in relation to the undertakers (other than the Post Office) means land which is used by the undertakers for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings and, in relation to the Post Office, has the same meaning as in paragraph 93 (4) of Schedule 4 to the Post Office Act, 1969;

1969 c. 48.

“ the undertakers ” means—

the Gas Council;

the South Western Gas Board;

the Central Electricity Generating Board;

the South Western Electricity Board; and

the Post Office;

or any of them, as the case may be:

PART VII
—cont.

- (2) (a) Nothing in the following sections of this Act shall relieve the appropriate authority or any person acting with the consent of or on the requirement of the appropriate authority from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections, and the said powers shall be so exercised as not to obstruct or render inconvenient, so far as is reasonably practicable, the access to any apparatus or operational land:—

Section 9 (Protection of trees, grass verges and gardens);

Section 10 (Golf courses);

Section 11 (Removal and disposal of vessels, etc., in tidal rivers and estuaries);

Section 29 (Boating facilities):

Provided that nothing in this paragraph shall impose any liability on the appropriate authority with respect to apparatus affected by the exercise of the powers of the said section 11 of this Act unless it be shown that the authority knew or ought reasonably to have known of the presence and positioning of that apparatus;

- (b) Not less than twenty-eight days before removing under the powers of the said section 11 any vessel or thing which is situate within 50 yards of any apparatus the appropriate authority shall give to the undertakers notice of their intention to do so:

- (3) Nothing in section 9 (Protection of trees, grass verges and gardens) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge, garden or space:

Provided that, in exercising such rights, the undertakers shall not cause or permit, except in case of necessity, vehicles to enter upon any such verge which is maintained in an ornamental condition or mown, or any garden or space:

- (4) (a) When the appropriate authority serve any notice under subsection (1) of section 16 (Securing of unoccupied houses under Housing Act, 1957) of this Act they shall 1957 c. 56. at the same time send a copy of such notice to the undertakers;

- (b) Nothing in the said section 16 shall prejudice the rights of the undertakers to enter upon any premises in exercise of their statutory powers in that behalf:

PART VII
—cont.

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of statutory powers, the undertakers exercising such powers of entry in respect of any premises secured under the said section 16 shall ensure that the premises are not left less secure by reason of the entry:

- (5) (a) Not less than twenty-eight days before commencing the construction of any boating facilities or building, accommodation, work or facilities connected therewith in exercise of powers of subsections (1) and (3) of section 29 (Boating facilities) of this Act or any work of deepening, dredging, scouring, cleansing, altering or improving the seashore in exercise of the powers of subsection (2) of the said section 29 within 50 yards of any apparatus, the appropriate authority shall submit to the undertakers particulars of the proposed construction or work, as the case may be, and furnish them with such particulars with respect thereto as the undertakers may reasonably require;
- (b) In the exercise of the powers of the said section 29 the appropriate authority shall not, except with the written consent of the undertakers, interfere with, damage or injuriously affect any apparatus nor shall any materials dredged up in the exercise of the powers of subsection (2) of that section be deposited in such place or manner as to cover any such apparatus or to impede any work of or connected with the inspection or repair of any such apparatus, without the consent of the undertakers:

Provided that—

- (i) the consent of the undertakers shall not in any case arising under this sub-paragraph be unreasonably withheld;
- (ii) such consent shall be deemed to have been given if the undertakers have not, within twenty-eight days of the making of any written application for such consent, refused such consent; and
- (iii) nothing in this sub-paragraph shall impose any liability on the appropriate authority with respect to damage to any apparatus unless it be shown that the authority knew or ought reasonably to have known of the presence and positioning of that apparatus;
- (c) The powers of subsections (1) and (3) of the said section 29 for the construction of boating facilities shall not be exercised so as to affect adversely the use by the Central Electricity Generating Board of water from any river for cooling purposes at any generating station belonging

to the said board or the efficient operation of any cooling water intake or outfall works used or intended to be used in connection with any such generating station;

- (d) No materials dredged in the exercise of the powers of subsection (2) of the said section 29 shall be deposited in such place or manner as to cover any subaqueous cable belonging to, or used by, the Post Office, or to impede in any way the inspection, maintenance, removal or renewal of any such cable, and nothing in the said section 29 shall prejudice or affect the provisions of sections 7 and 8 of the Telegraph Act, 1878, as applying 1878 c. 76. to any works which may be authorised by that section and to the appropriate authority authorised to execute such works, except that, for the notices referred to in paragraph (1) of the said section 7 and in the said section 8, there shall be substituted notice under subparagraph (a) of this paragraph:
- (6) (a) Any question or difference arising between the appropriate authority and the undertakers under this section shall be determined by a single arbitrator to be appointed by agreement between the parties or, failing agreement, to be appointed on the application of either party, after giving notice in writing to the other party, by the President of the Institution of Civil Engineers;
- (b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may, if he thinks fit, require the appropriate authority to execute any temporary or other works so as to avoid so far as may be reasonably possible any interference with any purpose for which the apparatus is used.

47.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included reference to this Act, except Part III (Highways and streets) of this Act. Application
of general
enactments.

(2) The sections of the Act of 1959 mentioned in Part II of Schedule 3 to this Act shall have effect as if references therein to that Act included reference to Part III (Highways and streets) of this Act.

(3) The section of the Act of 1936 mentioned in Part III of Schedule 3 to this Act shall have effect as if references therein to that Act included reference to the following sections of this Act:—

Section 11 (Removal and disposal of vessels, etc., in tidal rivers and estuaries);

PART VII
—*cont.*

- Section 17 (Byelaws as to boats and trailers on seashore);
Section 18 (Regulation of bathing and surfing);
Section 19 (Control of surf riding).

Saving for
Coast
Protection
Act, 1949.
1949 c. 74.

48. Nothing in this Act shall affect the application to any operation of sections 34 to 36 of the Coast Protection Act, 1949 (which require the consent of the Board of Trade or the Secretary of State to certain operations and contain other provisions for the safety of navigation).

Saving for
Town and
Country
Planning
Act, 1971.

49. Section 289 of the Act of 1971 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Act of 1971 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

Costs of Act.

50. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

SCHEDULES

SCHEDULE 1

Section 19.

SCHEME FOR CONTROL OF SURF RIDING

1. In this scheme—

“duly authorised person” means a participating authority or any lifeguard appointed by a participating authority or, on a beach not owned by a participating authority, a lifeguard or other person on that beach appointed by a participating authority for the purposes of this scheme;

“participating authority” means any local authority which has applied the provisions of this scheme;

“the prescribed fee” means a fee prescribed by a participating authority for the purpose of this scheme and such fee—

(a) shall not exceed fifty new pence; and

(b) shall consist of two elements, one element being the cost of insuring the user of the surf board against claims in respect of the death of, or bodily injury to, any other person caused by or arising out of the use of the surf board for riding the surf and the other element (which shall not exceed fifteen new pence) being for the purpose of defraying administrative costs:

Provided that a participating authority shall refrain from charging in respect of the insurance element in any case where there is already in force in relation to that surf board a policy of insurance affording cover at least as adequate as that afforded under the policy effected by that participating authority;

“registered” means registered under this scheme and “registration” shall be construed accordingly;

“surf board” means any surf board measuring more than 4 feet in length and incorporating a directional fin.

2. No person shall use, or cause or permit any other person to use for the purpose of riding the surf, a surf board within the district of a participating authority unless that surf board is registered with a participating authority.

3. An application for registration may be made to a duly authorised person and shall be in such form as the participating authority may require and shall be accompanied by the prescribed fee:

Provided that the participating authority shall not be entitled to require any information about the applicant other than—

(1) in the case of an individual—

(a) his full name and permanent address; and

SCH. 1
—cont.

(b) any information reasonably required by the insurer with whom insurance of the surf board is effected by the participating authority;

(2) where the applicant is not an individual—

(a) the name and address of the applicant; and

(b) any information required by the insurer with whom insurance of the surf board is effected by the participating authority.

4. Upon receipt of an application in the required form and accompanied by the prescribed fee, a duly authorised person shall forthwith grant registration of the surf board in respect of which the application is made and shall paint or affix the registration number to the surf board.

5. Registration shall be for a period of twelve months from the date upon which it is granted.

6. Before the owner of a registered surf board permits another person to use the surf board within the district of a participating authority, whether for payment or not, he shall first inform a duly authorised person of his intention so to do and shall comply with any requirements which the duly authorised person may impose upon him provided such requirements are necessitated by the policy of insurance under which the surf boards are insured.

7. If a person fails to comply with the requirements of paragraph 2 or paragraph 6 of this scheme he shall be guilty of an offence under this scheme.

8. The provisions of this scheme shall not apply to restrict the use of a surf board in any life-saving operation.

9. If and whenever the participating authority are unable to effect a policy of insurance for the purposes of this scheme, the requirements of the scheme shall be unenforceable in the district of that authority until such a policy is effected.

SCHEDULE 2
INCREASE OF FINES

Section 36.

(1) Enactment	(2) Old maximum fine	(3) Old maximum daily fine	(4) New maximum fine	(5) New maximum daily fine
Devon County Council Act, 1961—				1961 c. xlv.
Subsection (2) of section 17 (Verges, etc., of housing estates)	£2	—	£20	—
Paragraph (a) of subsection (4) of section 18 (Milk stands in highways)	£5	—	£20	—
Subsection (3) of section 20 (Licence to erect scaffolding)	£5	£2	£20	£2
Subsection (4) of section 21 (Restrictions on buildings under footways)	£20	£2	£50	£5
Subsection (2) of section 24 (Mixing of mortar in streets)	£5	—	£20	—
Subsection (2) of section 28 (Prohibition on solicitation of school children to sell or exchange articles, etc., at schools)	£5	—	£20	—
Subsection (1) of section 30 (Offences in respect of telephone boxes, etc.)	£5	—	£20	—
Subsection (3) of the said section 30—				
as respects paragraph (a)	£10	—	£20	—
as respects paragraph (b)	£25	—	£50	—
Paragraph (b) of subsection (5) of section 31 (Fire precautions in certain large buildings)	£10	£5	£20	£5
Subsection (3) of section 34 (Prescription of signs to be used on certain buildings)	£10	£5	£20	£5
Subsection (3) of section 74 (Special provisions as to registration of nursing homes)—				
on a first offence	£5	—	£20	—
on a second offence	£20	—	£50	—
Subsection (3) of section 75 (Special provisions as to registration of disabled persons' and old persons' homes)—				
on a first offence	£5	—	£20	—
on a second offence	£20	—	£50	—
Devon County Council Act, 1965—				1965 c. xxix.
Subsection (2) of section 15 (Prohibition of parking or camping on highway verges, etc.)	£5	—	£20	—

SCH. 2
—cont.

(1) Enactment	(2) Old maximum fine	(3) Old maximum daily fine	(4) New maximum fine	(5) New maximum daily fine
Subsection (3) of section 18 (Access to new streets)	£20	—	£50	—
Subsection (4) of section 21 (Oil pipes and manholes in streets)	£5	—	£20	—
Subsection (5) of section 23 (Enforcement of improve- ment line)	£20	—	£50	—
Subsection (8) of section 25 (Prevention or restriction of vehicular access to and from county roads)	£5	—	£20	—
Subsection (2) of section 26 (Sale of food and articles on verges, etc.)	£5	£2	£20	£5

SCHEDULE 3

Section 47.

GENERAL ENACTMENTS APPLIED

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SECTIONS OF ACT OF 1936 APPLIED TO THIS ACT, OTHER THAN PART III
OF THIS ACT

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
284	Authentication of documents.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

PART II

SECTIONS OF ACT OF 1959 APPLIED TO PART III OF THIS ACT

Section	Marginal note
269	Summary proceedings for offences.
270	Continuing offences.
273	Notice to be given of right of appeal.
274	Appeals and applications to magistrates' courts.
275	Appeals to quarter sessions from decisions of magistrates' courts.
277	Effect of decision of court upon an appeal.
278	Judges and justices not to be disqualified by liability to rates.
280	Notices, etc., to be in writing; forms of certain documents.
281	Authentication of documents, etc.
282	Service of notices, etc.
283	Reckoning of periods.

PART III

SECTION OF ACT OF 1936 APPLIED TO SECTIONS 11, 17, 18 AND 19
OF THIS ACT

Section	Marginal note
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Devon County Council Act 1972

CHAPTER xxx

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10. Golf courses.
11. Removal and disposal of vessels, etc., in tidal rivers and estuaries.

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